

HCJD/C-121
ORDER SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

W.P. No. 51697 of 2023

Cargo United Goods Transport **Versus** Province of Punjab, etc.
Company, etc.

W.P. No. 66220 of 2024

Ashfaq Mushtarqa Mehmand Union **Versus** Government of Punjab, etc.
Goods Transport Company

S. No. of order/ proceeding	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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23.01.2025 M/s Mahmood A. Sheikh and Muhammad Faizan Saleem, Advocates for the Petitioners.
Mr. Sikandar Nisar Saroya, Assistant Advocate General, Punjab with Javed Dogar, DSP (Legal), CCPO Office, Lahore and Malik Ahmad, DSP Traffic, City Traffic Police, Lahore.

This Order shall decide the titled Petitions which are based on similar set of facts and raise identical questions of law.

2. It is alleged in W.P. No. 51697 of 2023 that Petitioner No. 1 is running a Goods Transport Company and plying its vehicles throughout Pakistan for the last more than fifty years. On 10.05.2023, the Petitioner’s vehicle bearing registration No. JU-5589 arrived from Karachi at around mid-day and was parked at Truck Stand situated at Sabzazar, Lahore. The vehicle (Prime Mover & the Trailer) had 40 feet long container loaded thereon. The particulars of goods, their values, names of actual owners alongwith value of the vehicle is listed in detail in paragraph No. 3 of the Petition. On 10.05.2023 at about 03:00 P.M. contingent of Police officials headed by three Traffic Wardens came at the Truck Stand and forcibly took custody of the loaded vehicle. The drivers and

helpers of the vehicle questioned the Officials that under what provision of law they took the loaded vehicle under their custody but they were vociferously admonished and threatened of dire consequences by the said officials. The vehicle was ordered to be taken to Sabzazar Police Station forcibly where drivers of the vehicle repeatedly requested the Police Officials to offload the valuable goods from the vehicle if they intended to impound the same but to no avail. Later, the drivers were compelled to take the vehicle to Kalma Chowk for parking at the entry point of the Underpass in order to block the entry of traffic. This act of the officials provoked an unruly mob which became furious and at about 09:30 P.M., the loaded Trailer of the Petitioner was set on fire. In consequence thereof, the container and valuable goods were burnt to ashes. The Police and Traffic Officials, instead of protecting the drivers, vehicle and the goods loaded thereon, also fled the scene. The incident was widely reported in various news channels drawing condemnation but the Petitioners were left unattended and wondering from whom they are meant to recover their losses and how to proceed against the Officials of the State who are meant to protect their life, property and liberty but themselves take it away under the authority of the State.

3. Similarly, in W.P. No. 66220 of 2024, the Petitioner who is also an owner of Goods Transport Company has alleged that on 03.10.2024, the loaded and unloaded vehicles and containers were intercepted by Police and Traffic Officials from the business premises of the Petitioner located at Ravi Road, Lahore without prior notice, valid cause or any lawful order and confiscated the said vehicles. Upon being confronted, Police Officials initially remained mum and later, told the Petitioner that

the vehicles have been detained and confiscated for blocking various roads to block protest announced by a political party on 05.10.2024 at Minar-e-Pakistan. More loaded / unloaded vehicles and containers were intercepted and detained from Shahdara on 07.10.2024 for the same purpose and drivers were threatened to be confined to judicial lockup in case of avoiding directions of the Police and Traffic Officials. During this period, a long vehicle and container was broken, whereas, one long vehicle including container was set on fire by an unruly mob of protestors and in consequence thereof, the vehicle and all goods loaded thereon were burnt to ashes. The Petitioner alongwith vehicle, container and goods owners attempted to approach the concerned Respondents in order to report the matter but did not get any response. Resultantly, huge loss was incurred not only on account of burnt vehicle but also due to loss of loaded perishable and nonperishable goods due to unlawful detention of the vehicles.

4. The Petitioners in the titled Petitions claim compensation of losses suffered by them and seek declaration to the effect that the arbitrary act of impounding, confiscating and detaining vehicles is unlawful and unconstitutional.

5. In the above factual matrix, it is argued that the State and its functionaries are obligated under the Constitution of the Islamic Republic of Pakistan, 1973 (the “**Constitution**”) to protect the life, liberty and property of its citizens. There is no provision of law which authorizes the agencies and functionaries of the State to take possession of the property of its citizens without following due process of law. The fundamental rights are unequivocally guaranteed under Articles 2-A, 4, 9, 18, 23 & 24 of the Constitution. These guarantees are required to

be enforced without discrimination by the functionaries of the State. However, it is ironic and regrettable that the very officials who are obligated by the Constitution to protect its citizens have blatantly violated the same causing irreparable damage to the life, liberty and property of the Petitioners.

6. It is noted that in W.P. No. 51697 of 2023, the incident reported by the Petitioners has been acknowledged in report and parawise comments by the Respondents, the incident is mentioned in FIRs and related Police investigations, however, nothing is stated therein regarding the role of the functionaries of the State in terms of allegations of the Petitioner. No notice has yet been issued in W.P. No. 66220 of 2024 but the same having identical facts was taken up with the former Petition.

7. The titled Petitions raise pertinent constitutional and legal questions i.e.

- i. Under what authority or provision of law, the State, its agencies and functionaries confiscate, impound or detain private vehicles in order to block entry and exit points in the event of protests?
- ii. Who issues such orders to law enforcement agencies?
- iii. Whether such acts of impounding, confiscating and detaining of private vehicles is undertaken forcibly or with the consent of owners of private vehicles?
- iv. Whether compensation in terms of rent is paid to the owners whose vehicles are detained and used by the State for its own purposes?
- v. Whether during the period of voluntarily or forcible use of vehicles by functionaries of the State, the owners are compensated in case of any damages and losses to the vehicles and goods loaded thereon?
- vi. What are the actual losses suffered by the Petitioners and what mechanism has been put in place by the State for payment of compensation?

vii. What steps are required or have been taken to bring delinquent officials to account for their unlawful actions? and

viii. What steps are required to prevent such acts in future?

8. This Court is mindful of the fact that in the last resort in terms of constitutional dispensation, it may have to answer the aforesaid questions itself in exercise of its powers of judicial review. Nevertheless, it is imperative to allow an opportunity to the Government to determine the validity, constitutionality and legality of the actions complained of by the Petitioners in the first instance. This is particularly imperative when the Petitioners have sought immediate compensation from the State regarding their actual losses in terms of burnt / lost goods and vehicles alongwith appropriate actions against Police and Traffic Officials found involved in unlawful acts which led the Petitioners to suffer huge losses. This requires a thorough impartial and unbiased inquiry for prompt redressal of grievances of the Petitioners.

9. After hearing learned counsel for the Petitioners and learned Law Officer, a consensus has emerged that the Chief Secretary, Punjab be directed to constitute a committee to thoroughly investigate allegations of the Petitioners.

10. In view of the above, Office is directed to transmit the titled Petitions alongwith their annexures and ancillary record as representations of the Petitioners to the Chief Secretary, Punjab who is directed to constitute a Committee consisting of three impartial Officers not below the rank of Grade-21 to undertake a thorough inquiry into the allegations of the Petitioners, assess the losses occasioned by them and if found true, make recommendations to the Government for due

compensation to the Petitioners and identify the role of Police and Traffic Officials who led the vehicles to the occasion of incidents which caused losses to the Petitioners. The Committee will address all the questions framed in Paragraph No. 7 of this Order and make recommendations to the Government for way forward. The inquiry proceedings will be supervised by the Chief Secretary, Punjab himself and shared with the Government which shall be concluded expeditiously, preferably within three (03) months from the date of this Order after associating the Petitioners and all other concerned persons, in accordance with law under intimation to the Deputy Registrar (Judicial) of this Court.

11. The titled Petitions are **disposed of** in the above terms.

(Abid Hussain Chattha)
Judge

Approved for reporting.

Judge